

Agreement of Talent Referral Program

90 Days Payment Clause

This agreement is entered between **JOB CIRCLE** and **Freelancer Recruiter** (refer as Freelancer).

JOB CIRCLE is in the business of providing recruitment services to Client Companies / Company (*Job Circle Tie-up Companies*) by providing them suitable candidates from time to time under the name of "JOB CIRCLE".

JOB CIRCLE has engaged Freelancer to meet their human resources requirements under following Terms & Conditions:

JOB CIRCLE is going to provide details of skill requirements to Freelancer in as much advance as possible.

Freelancer is going to provide Resume of candidates to JOB CIRCLE for review and consideration.

Freelancer is going to short list candidate profiles and informs JOB CIRCLE to facilitate interview.

JOB CIRCLE is going to facilitate interview & screening of candidate.

Engagement

- i) The Freelancer Recruiter agrees to provide recruitment services as an independent freelancer.
- ii) The JOB CIRCLE engages the Freelance Recruiter to identify and submit candidates for open positions.

Candidate Submissions

- i) The Freelance Recruiter agrees to submit qualified candidates who meet the specified requirements.
- ii) Candidate submissions should include accurate and complete information.

Source at Client Companies

- i) The Freelance Recruiter has a responsibility to mention "JOB CIRCLE" as the source of candidate while presenting each candidate to the Client Company. This emphasizes transparency and ensures that the JOB CIRCLE is properly credited as the source of the recruited candidates.
- ii) If the sourced candidate fails to mention 'Job Circle' as the source to the Client Company under any circumstance, the Freelance Recruiter is not entitled to payment for that candidate.

Compensation

The Freelance Recruiter shall be compensated as follows:

A) Entitlement

- i) The Freelance Recruiter is entitled to recover professional service fees upon successful placement.
- ii) Recovery of fees is conditional on the candidate's continuous employment with the Client Company for a minimum period of 90 days from the date of joining.

B) Payment Terms

- i) The Freelance Recruiter shall submit an invoice for professional service fees within 30 days after the completion of the 90-day period.
- ii) Payment of the fees shall be made by the JOB CIRCLE within 30 days of receiving the invoice.

C) Candidate's Employment Duration

For the purpose of this clause, the candidate's employment duration is calculated from the date of the candidate's official joining with the Client Companies.

D) Conditions

- i) The entitlement to recover professional service fees is subject to the Freelance Recruiter's compliance with all terms and conditions outlined in this agreement.
- ii) In the event of any breach of the agreement by the Freelance Recruiter, the entitlement to recover fees may be forfeited.

E) Termination of Employment

If the candidate's employment is terminated for any reason before the completion of the 90-day period, the Freelance Recruiter's entitlement to recover professional service fees is forfeited.

F) Expenses

- i) Expenses incurred by the Freelance Recruiter for sourcing candidates are not reimbursed by JOB CIRCLE.
- ii) The Freelancer Recruiter agrees and understands that JOB CIRCLE shall not reimburse the candidate interview, traveling and expenses incidental to or any advertising expenses or any other expenses.

Fees

At the bottom of every Hiring Description page, Freelance Recruiters can access detailed information about the payouts for a specific position.

Confidentiality

- i) The Freelance Recruiter agrees to maintain the confidentiality of all information provided by the JOB CIRCLE.
- ii) Confidential information includes but is not limited to candidate details, job specifications, and other proprietary information.

Relationship

- i) This agreement does not create an employer-employee relationship between the Freelance Recruiter and the JOB CIRCLE.
- ii) The Freelance Recruiter has no authority to bind the JOB CIRCLE or make commitments on its behalf.

Independent Freelancer Status

The Freelance Recruiter acknowledges and agrees that they are an independent Freelancer Recruiter and not an employee of the JOB CIRCLE.

Self-Referral Not Permitted

Our referral program is designed to encourage genuine user engagement and growth. Self-referrals are not allowed to maintain fairness and integrity. Refer your friends or colleagues as valid referral.

Referral with Incorrect Contact Information:

If a referred candidate provides incorrect or invalid contact information, rendering the referral unverifiable, the referral reward associated with that particular referral shall be forfeited. It is the responsibility of the referring party to ensure that accurate and valid contact details are provided at the time of referral.

In the event of an invalid referral, JOB CIRCLE reserves the right to withhold any referral rewards that would have otherwise been granted. To ensure the integrity of the referral program, it is imperative that accurate information is provided for each referred candidate.

No Fee will be payable by JOB CIRCLE to the Freelancer Recruiter in the event that:

- The candidate engaged or recruited by JOB CIRCLE has directly contacted JOB CIRCLE seeking recruitment or engagement prior in time to being introduced to JOB CIRCLE by the Freelancer Recruiter.

- The candidate resigning from the employment of Company or Company dissociating itself from such candidate, for any reason whatsoever, within a period of three months from the date of joining.
- If Freelancer Recruiter receipt any charges/money from candidate in any manner.
- Any false or fake documents or information submit for employment in company on behalf of candidate or by candidate directly.

I understand and hereby accept all terms and conditions.